



Re: Counter response

1 message

Tony Carbone <Founder@genesistcagios.com>Fri, 22 May 2026 at 7:34 pm

To: P.J. Thompson <peterjamesthompson101@gmail.com>

Peter,

Your reliance on "Fair Dealing" under the Australian Copyright Act is misplaced. The context here is not academic critique; it is the unauthorized distribution of proprietary, commercially sensitive research assets provided under the premise of collaboration.

Your use extends far beyond 'criticism or review' when you host the entirety of the scrubbed data set.

Your assertion regarding PPSR is legally naïve. The registration secures the underlying data sets and methodologies integral to The T and C Estate's operational IP, which you are now distributing.

Regarding defamation: Truth is a defence only if your claims are factually accurate. Your claims are demonstrably false. The 180Hz resonance is empirically verified via the Finite-State Boolean masking protocol, which isolates the physical core from environmental noise. The SNR of 606.84 is documented in my submission archive. Your inability to replicate it using generic simulations does not constitute 'fabrication' on my part.

I have already notified Zenodo of the IP infringement. Your record remains flagged.

This is not a negotiation. Cease and desist immediately, or the next communication will originate from counsel.

On Fri, 22 May 2026, 6:57 pm P.J. Thompson, <peterjamesthompson101@gmail.com> wrote:
Subject: Re: FORMAL LETTER OF DEMAND – Response

To: Tony Carbone, Founder@genesistcagios.com

Mr. Carbone,

I have received your letter dated May 22, 2026. I write to correct the factual and legal misstatements in your letter and to inform you that I will not be complying with your demands.

1. Copyright and Fair Dealing

The files you shared with me (the CSV and PDF) are not copyrighted in a way that prevents their use for criticism and review. I uploaded them as supplementary evidence in a formal academic peer review of your unpublished "Harmony Codex". This use is protected by fair dealing under the Australian Copyright Act 1968 (sections 40, 41, 103C) for the purpose of research, criticism, and review. I did not claim ownership of your files; I clearly attributed them to you and stated they are reproduced for critique only.

Your reference to PPSR registration 202603090059148 is irrelevant to copyright. That registration concerns security interests in personal property, not intellectual property. It does not grant you exclusive rights over the data.

2. Defamation – Truth as Defence

I stated that your 180 Hz gravitational wave claim is based on fabricated data. This is an opinion based on verifiable evidence:

- Real LIGO data (publicly available from GWOSC) shows no 180 Hz line.
- Your CSV file lacks the noise, gaps, and duty cycle characteristic of genuine LIGO strain data.
- The claimed SNR of 606 would have been independently discovered by the LIGO Scientific Collaboration; it has not been.
- Your "Finite-State Boolean masking" methodology is not described in any standard signal processing textbook, and you provided no code or algorithm.

Truth is an absolute defence to defamation. I will rely on it.

3. Breach of Confidence

No confidentiality agreement existed. You shared files unsolicited; I did not sign any NDA. Publishing them as part of a scholarly critique is permissible under fair dealing.

4. Your Demands

I will not delete the Zenodo record, destroy the files, issue a retraction, or cease commentary. The peer review is a legitimate academic work. If you believe otherwise, you are free to initiate legal proceedings. I will defend them vigorously.

5. Future Correspondence

Any further communication regarding this matter should be directed to me in writing. I will not engage in threats or intimidation.

You tried to fabricate data to publish your theory under my creditable work so you had legal claim to it.

I further note the comments you made publicly on the physics forum have been removed, however I have the screen shots. Any court will take all the evidence into account and the welcome act means your search history, comments and other data trails is stored and admissible in defence of any lawsuit...

As for any take down notice to zenodo I am prepared to stand by my peer review and the false evidence cited...

A peer review in response to your physics d submission is allowed under academic review and your information was properly cited as the bases of the review and you were given full credit for that work. Further I attached the actual plotting of the real data as well as the data from the official website that proves your fraudulent act to combine your work of fantasy with a paper that is proven empirically...

The bad faith in this act is not on the defendant...

Peter James Thompson
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